

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

Index #:  
Date Purchased:

-----x

JOSE ESCALONA-MARTINEZ,  
Plaintiff,

Plaintiff designates  
NEW YORK County as  
Place of Trial  
Basis of venue is:  
Place of Occurrence

-against-

### SUMMONS

THE CITY OF NEW YORK, POLICE OFFICER  
"JOHN" RAHMAN (FIRST NAME UNKNOWN),  
SHIELD#: 5322, and POLICE OFFICER  
"JOHN" BRAND (FIRST NAME UNKNOWN),  
SHIELD#: 632, and POLICE OFFICER  
"JOHN" RAHMAN (FIRST NAME UNKNOWN),  
SHIELD#: 3511,

Plaintiff's Residence:  
600 West 136<sup>th</sup> Street  
New York, NY 10031

Defendants.

-----x

To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: May 24, 2023

DAVID HOROWITZ, P.C.

By: Joanna Plonska

Joanna Plonska

171 Madison Avenue, 1300  
New York, New York 10016  
(212) 684-3630

#### Defendants' Addresses:

CITY: 100 Church Street, New York, New York 10007

P.O. RAHMAN, SHIELD#: 5322: One Police Plaza, NY, NY and or 18<sup>th</sup>  
Precinct, 306 W 54th St, New York, NY 10019

P.O. BRAND, SHIELD#: 632: One Police Plaza, NY, NY and or 18<sup>th</sup>  
Precinct, 306 W 54th St, New York, NY 10019

P.O. RAHMAN, SHIELD#: 3511: One Police Plaza, NY, NY and or 18<sup>th</sup>  
Precinct, 306 W 54th St, New York, NY 10019

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

-----X  
JOSE ESCALONA-MARTINEZ,

Plaintiff,

-against-

**VERIFIED COMPLAINT**

THE CITY OF NEW YORK, POLICE OFFICER  
"JOHN" RAHMAN (FIRST NAME UNKNOWN),  
SHIELD#: 5322, and POLICE OFFICER  
"JOHN" BRAND (FIRST NAME UNKNOWN),  
SHIELD#: 632, and POLICE OFFICER  
"JOHN" RAHMAN (FIRST NAME UNKNOWN),  
SHIELD#: 3511,

Defendants.

-----X

Plaintiff, JOSE ESCALONA-MARTINEZ, by his attorney,  
DAVID HOROWITZ, P.C., complaining of the defendants, alleges upon  
information and belief as follows:

1. That at all times hereinafter mentioned, the  
defendant THE CITY OF NEW YORK was and still is a domestic  
municipal corporation, duly organized and existing under and by  
virtue of the laws of the State of New York.

**AS AND FOR A FIRST CAUSE OF ACTION AGAINST ALL  
DEFENDANTS REGARDING THE 3/25/22 INCIDENT**

2. That at all times hereinafter mentioned, Police  
Officer Rahman, Shield#: 5322 was employed by the New York City  
Police Department, a division of the defendant THE CITY OF NEW  
YORK;

3. That at all times hereinafter mentioned, Police

Officer Rahman, Shield#: 5322 was employed by the defendant the CITY OF NEW YORK.

4. That at all times hereinafter mentioned, Police Officer Rahman, Shield#: 5322 was acting in the course of his employment and further of the business of the New York City Police Department, a division of the City of New York.

5. That at all times hereinafter mentioned, Police Officer Rahman, Shield#: 5322 was acting in the course of his employment and further of the business of the defendant THE CITY OF NEW YORK.

6. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK employed Police Officer Rahman, Shield#: 5322.

7. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK hired Police Officer Rahman, Shield#: 5322.

8. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK trained Police Officer Rahman, Shield#: 5322.

9. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK supervised Police Officer Rahman, Shield#: 5322.

10. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK directed Police Officer Rahman, Shield#: 5322.

11. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK controlled Police Officer Rahman, Shield#:

5322.

12. That at all times hereinafter mentioned, Police Officer Brand, Shield#: 632 was employed by the New York City Police Department, a division of the defendant THE CITY OF NEW YORK;

13. That at all times hereinafter mentioned, Police Officer Brand, Shield#: 632 was employed by the defendant the CITY OF NEW YORK.

14. That at all times hereinafter mentioned, Police Officer Brand, Shield#: 632 was acting in the course of his employment and further of the business of the New York City Police Department, a division of the City of New York.

15. That at all times hereinafter mentioned, Police Officer Brand, Shield#: 632 was acting in the course of his employment and further of the business of the defendant THE CITY OF NEW YORK.

16. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK employed Police Officer Brand, Shield#: 632.

17. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK hired Police Officer Brand, Shield#: 632.

18. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK trained Police Officer Brand, Shield#: 632.

19. That at all times hereinafter mentioned, defendant

the CITY OF NEW YORK supervised Police Officer Brand, Shield#: 632.

20. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK directed Police Officer Brand, Shield#: 632.

21. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK controlled Police Officer Brand, Shield#: 632.

22. That at all times hereinafter mentioned, Police Officer Rahman, Shield#: 3511 was employed by the New York City Police Department, a division of the defendant THE CITY OF NEW YORK;

23. That at all times hereinafter mentioned, Police Officer Rahman, Shield#: 3511 was employed by the defendant the CITY OF NEW YORK.

24. That at all times hereinafter mentioned, Police Officer Rahman, Shield#: 3511 was acting in the course of his employment and further of the business of the New York City Police Department, a division of the City of New York.

25. That at all times hereinafter mentioned, Police Officer Rahman, Shield#: 3511 was acting in the course of his employment and further of the business of the defendant THE CITY OF NEW YORK.

26. That at all times hereinafter mentioned, defendant

the CITY OF NEW YORK employed Police Officer Rahman, Shield#: 3511.

27. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK hired Police Officer Rahman, Shield#: 3511.

28. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK trained Police Officer Rahman, Shield#: 3511.

29. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK supervised Police Officer Rahman, Shield#: 3511.

30. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK directed Police Officer Rahman, Shield#: 3511.

31. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK controlled Police Officer Rahman, Shield#: 3511.

32. That on the 24<sup>th</sup> day of May 2022, a notice of claim was duly served upon the defendant THE CITY OF NEW YORK.

33. That said notice of claim was duly served upon the defendant THE CITY OF NEW YORK within 90 days after the said cause of action of the plaintiff accrued.

34. That more than thirty days have elapsed since the service of the said notice of claim upon the defendant THE CITY OF NEW YORK.

35. That the defendant THE CITY OF NEW YORK and its comptroller have failed, neglected, and refused to pay, settle,

compromise or adjust the claim of the plaintiff herein.

36. That a 50(h) hearing was held on July 28, 2022.

37. That this action has been commenced within one year and ninety days after the cause of action of plaintiff accrued.

38. That plaintiff has duly complied with all of the conditions precedent to the commencement of this action.

39. That on March 25, 2022, at approximately 12:19 P.M., as plaintiff was dressed in a Spiderman costume, and was lawfully walking on a public sidewalk and not conducting any business whatsoever, and not talking to anyone, and not asking for money, not receiving money, and not taking a picture, in the Times Square Area at or near 7<sup>th</sup> Avenue and 42<sup>nd</sup> Street, New York, New York, when he was approached by Police Officer Rahman, Shield#: 5322 who asked him to leave the area without cause or reason and then Officer Rahman threatened to issue a ticket. Plaintiff then called 911 to report the harassment. More police officers arrived at the scene to harass and intimidate plaintiff. Despite not committing any crime, nor violation, plaintiff was improperly and illegally stopped, frisked, falsely arrested, falsely imprisoned, and transported to the 18<sup>th</sup> Precinct where he was held for approximately 2 hours without probable cause or reasonable suspicion, or reason. There was no warrant for the plaintiff's arrest. Plaintiff was improperly issued 2 desk appearance tickets

to appear in Midtown Community Court and improperly charged with violations of the law. He was then released. That upon information and belief, the police officers intentionally failed to file the tickets with the Court. The officers did not follow-up on the tickets and did not formally file or pursue the tickets. All tickets and or charges were dismissed (see attached tickets and certificate of dismissal annexed hereto as Exhibit A).

40. Plaintiff was falsely detained, falsely arrested, falsely imprisoned, retaliated against, issued two desk appearance tickets and maliciously prosecuted all due to the negligence and recklessness of the defendant THE CITY OF NEW YORK, Police Officer Brand, Shield#: 632, Police Officer Rahman, Shield#: 3511, and Police Officer Rahman, Shield#: 5322 and its agents, servants and/or employees, all to plaintiff's damage and deprivation of freedom and deprivation of his civil rights.

41. That upon information and belief, and more particularly on March 25, 2022, and continuing thereafter, defendant THE CITY OF NEW YORK by and its agents, servants, employees, and defendants Police Officer Brand, Shield#: 632, Police Officer Rahman, Shield#: 3511, and Police Officer Rahman, Shield#: 5322, acting in the scope of their employment and in the furtherance of the business of the defendant THE CITY OF NEW YORK, without probable cause, without reason, without justification,



provocation, and with malice, improperly and illegally stopped and frisked plaintiff, falsely detained, falsely arrested, falsely imprisoned, falsely issued two desk appearance tickets and maliciously prosecuted and retaliated against plaintiff JOSE ESCALONA-MARTINEZ.

42. At the time of said false detainment and false arrest, plaintiff JOSE ESCALONA-MARTINEZ had committed no illegal act and the defendant and its agents, servants, employees and police officers had no probable cause or reasonable belief that the plaintiff had committed an illegal act.

43. That the said Police Officer Brand, Shield#: 632, Police Officer Rahman, Shield#: 3511, and Police Officer Rahman, Shield#: 5322 falsely detained, falsely arrested, falsely imprisoned, falsely issued two desk appearance tickets and maliciously prosecuted the plaintiff, while employed by the New York City Police Department and acting as agents, employees and/or servants of the defendant CITY OF NEW YORK, and otherwise while acting on behalf of the defendant the City of New York.

44. That the said Police Officer Brand, Shield#: 632, Police Officer Rahman, Shield#: 3511, and Police Officer Rahman, Shield#: 5322, while acting in the course of their employment for the defendant THE CITY OF NEW YORK, and following the City of New York's improper training and custom and practice that

discriminates and targets Times Square street performers including plaintiff, the defendant CITY OF NEW YORK and its officers, agents, employees and servants falsely detained, falsely arrested, falsely imprisoned, falsely issued two desk appearance tickets and maliciously prosecuted the plaintiff, while acting as agents, employees and/or servants of the defendant CITY OF NEW YORK, and otherwise while acting on behalf of the defendant the City of New York.

45. That the defendant THE CITY OF NEW YORK, through its police officers, including Police Officer Brand, Shield#: 632, Police Officer Rahman, Shield#: 3511, and Police Officer Rahman, Shield#: 5322 acted intentionally, willfully, knowingly, and maliciously in bringing about the false detainment, false arrest, false imprisonment, and malicious prosecution of plaintiff.

46. That the defendant, THE CITY OF NEW YORK, was negligent in its hiring and training practices of its police officers including Police Officer Brand, Shield#: 632, Police Officer Rahman, Shield#: 3511, and Police Officer Rahman, Shield#: 5322; in that it retained officers not fit by temperament or personality to be officers; in failing to fire officers not fit for their position; in failing to instruct officers as to the civil rights of defendants; in failing to instruct and train officers on the rules and regulations of designated zones and designated

activity in Times Square Area; in the malicious prosecution of plaintiff without probable cause; in detaining plaintiff without probable cause; in harassing plaintiff; in arresting plaintiff without probable cause; in imprisoning plaintiff without probable cause; in failing to have an arrest warrant; in failing to give Miranda Warnings; in following a custom and practice that discriminates and targets Times Square street performers such as plaintiff; in taking plaintiff's freedom away; in failing to protect plaintiff; in violating plaintiff's rights under the New York State Constitution, violating plaintiff's right under the U.S. Constitution and federal statutes including 42 USC 1985, 1983 and 1981 in that plaintiff was deprived of his rights, privileges and immunities afforded under the Federal Constitution and Federal Law; defendant THE CITY OF NEW YORK and defendants Police Officer Brand, Shield#: 632, Police Officer Rahman, Shield#: 3511, and Police Officer Rahman, Shield#: 5322 were negligent in failing to use such care in the performance of their duties as a police officer as a reasonably prudent police officer would have performed under similar circumstances including but not limited to failing to use ordinary care; failing to protect; failure to guard, failure to police; failure to serve the public; failure to supervise, failure to train, failure to manage, failure to instruct; in permitting the false detention, false arrest, false imprisonment

and malicious prosecution of the plaintiff; in permitting a custom and practice that discriminates and targets Times Square street performers such as plaintiff; in promulgating a custom, practice and policy that discriminates and targets Times Square street performers; in harassing the plaintiff; in having a custom and practice of discriminating and retaliating against plaintiff for making prior formal complaints against police for prior similar conduct failing to train its officers; and in failing to avoid the occurrence although there was an opportunity to do so.

47. That the defendants Police Officer Brand, Shield#: 632, Police Officer Rahman, Shield#: 3511, and Police Officer Rahman, Shield#: 5322, failed to protect, and falsely detained and falsely arrested plaintiff without probable cause or reason, while acting as an officer, agent, employee and/or servant of the defendant THE CITY OF NEW YORK, and otherwise while acting on behalf of the defendant THE CITY OF NEW YORK.

48. That as a result of the above actions of the defendants including its police officers, plaintiff suffered severe mental anguish, psychological trauma, physical harm, loss of freedom, false arrest, false charges, false imprisonment, stop and frisk, humiliation, ridicule, harm to reputation, psychological trauma, and disability from activities, malicious prosecution, retaliation, intentional infliction of emotional

distress, harassment, embarrassment, emotional distress, anxiety, depression, fear of police, and loss of quality of life; all to his damage in an amount which exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR A SECOND CAUSE OF ACTION AGAINST ALL  
DEFENDANTS REGARDING THE 3/26/22 INCIDENT**

49. Plaintiff repeats, reiterates and realleges each and every allegation contained within paragraphs marked and numbered "1" through "48" with the same force and effect as if more fully enumerated hereinafter.

50. That at all times hereinafter mentioned, Police Officer Rahman, Shield#: 5322 was employed by the New York City Police Department, a division of the defendant THE CITY OF NEW YORK;

51. That at all times hereinafter mentioned, Police Officer Rahman, Shield#: 5322 was employed by the defendant the CITY OF NEW YORK.

52. That at all times hereinafter mentioned, Police Officer Rahman, Shield#: 5322 was acting in the course of his employment and further of the business of the New York City Police Department, a division of the City of New York.

53. That at all times hereinafter mentioned, Police Officer Rahman, Shield#: 5322 was acting in the course of his employment and further of the business of the defendant THE CITY

OF NEW YORK.

54. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK employed Police Officer Rahman, Shield#: 5322.

55. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK hired Police Officer Rahman, Shield#: 5322.

56. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK trained Police Officer Rahman, Shield#: 5322.

57. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK supervised Police Officer Rahman, Shield#: 5322.

58. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK directed Police Officer Rahman, Shield#: 5322.

59. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK controlled Police Officer Rahman, Shield#: 5322.

60. That at all times hereinafter mentioned, Police Officer Brand, Shield#: 632 was employed by the New York City Police Department, a division of the defendant THE CITY OF NEW YORK;

61. That at all times hereinafter mentioned, Police Officer Brand, Shield#: 632 was employed by the defendant the CITY OF NEW YORK.

62. That at all times hereinafter mentioned, Police

Officer Brand, Shield#: 632 was acting in the course of his employment and further of the business of the New York City Police Department, a division of the City of New York.

63. That at all times hereinafter mentioned, Police Officer Brand, Shield#: 632 was acting in the course of his employment and further of the business of the defendant THE CITY OF NEW YORK.

64. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK employed Police Officer Brand, Shield#: 632.

65. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK hired Police Officer Brand, Shield#: 632.

66. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK trained Police Officer Brand, Shield#: 632.

67. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK supervised Police Officer Brand, Shield#: 632.

68. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK directed Police Officer Brand, Shield#: 632.

69. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK controlled Police Officer Brand, Shield#: 632.

70. That at all times hereinafter mentioned, Police Officer Rahman, Shield#: 3511 was employed by the New York City

Police Department, a division of the defendant THE CITY OF NEW YORK;

71. That at all times hereinafter mentioned, Police Officer Rahman, Shield#: 3511 was employed by the defendant the CITY OF NEW YORK.

72. That at all times hereinafter mentioned, Police Officer Rahman, Shield#: 3511 was acting in the course of his employment and further of the business of the New York City Police Department, a division of the City of New York.

73. That at all times hereinafter mentioned, Police Officer Rahman, Shield#: 3511 was acting in the course of his employment and further of the business of the defendant THE CITY OF NEW YORK.

74. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK employed Police Officer Rahman, Shield#: 3511.

75. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK hired Police Officer Rahman, Shield#: 3511.

76. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK trained Police Officer Rahman, Shield#: 3511.

77. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK supervised Police Officer Rahman, Shield#: 3511.

78. That at all times hereinafter mentioned, defendant



the CITY OF NEW YORK directed Police Officer Rahman, Shield#: 3511.

79. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK controlled Police Officer Rahman, Shield#: 3511.

80. That on the 24<sup>th</sup> day of May 2022, a notice of claim was duly served upon the defendant THE CITY OF NEW YORK.

81. That said notice of claim was duly served upon the defendant THE CITY OF NEW YORK within 90 days after the said cause of action of the plaintiff accrued.

82. That more than thirty days have elapsed since the service of the said notice of claim upon the defendant THE CITY OF NEW YORK.

83. That the defendant THE CITY OF NEW YORK and its comptroller have failed, neglected, and refused to pay, settle, compromise or adjust the claim of the plaintiff herein.

84. That a 50(h) hearing has not been requested to date.

85. That this action has been commenced within one year and ninety days after the cause of action of plaintiff accrued.

86. That plaintiff has duly complied with all of the conditions precedent to the commencement of this action.

87. That on March 26, 2022, at approximately 11:15 A.M., as plaintiff was dressed in a Spiderman costume, and was lawfully standing within a designated activity zone in the Times

Square Area at or near 45<sup>th</sup> Street and Broadway, New York, New York and he conducted designated lawful activity with a customer and without solicitation, he was then approached by Police Officer Rahman, Shield#: 5322 who asked him to leave the area without probable cause, reasonable suspicion or reason and then plaintiff was improperly and illegal stopped and detained by Police Officer Brand, Shield#: 632, Police Officer Rahman, Shield#: 3511, and Police Officer Rahman, Shield#: 5322, wherein he was improperly accused of receiving a tip outside the designated activity zone. Having called 911 to file a complaint against the same officers on or about March 25, 2022, for false arrest and harassment, police then retaliated, and plaintiff was then detained in the street for approximately 30 minutes and Police Officer Rahman improperly issued a desk appearance ticket to plaintiff to appear in Midtown Community Court without probable cause or reason. On or about April 14, 2022, plaintiff was arraigned. On or about April 28, 2022, the ticket and charges were dismissed. Despite not committing any crime, nor violation, plaintiff was improperly and illegally stopped, frisked, falsely arrested, and detained without probable cause or reasonable suspicion, or reason. There was no warrant for the plaintiff's arrest. (see attached ticket and certificate of dismissal annexed hereto as Exhibit B). That upon information and belief, due to the March 25, 2022, encounter and complaint, the

police officers retaliated, discriminated, and harassed plaintiff. That defendant has a custom and practice of retaliating, discriminating and harassing victims that file formal complaints against police. That defendant has a custom and practice of retaliating, discriminating and harassing Times Square Performers such as plaintiff.

88. Plaintiff was falsely detained, falsely arrested, falsely imprisoned, retaliated against, issued a desk appearance ticket and maliciously prosecuted all due to the negligence and recklessness of the defendant THE CITY OF NEW YORK, Police Officer Brand, Shield#: 632, Police Officer Rahman, Shield#: 3511, and Police Officer Rahman, Shield#: 5322 and its agents, servants and/or employees, all to plaintiff's damage and deprivation of freedom and deprivation of his civil rights.

89. That upon information and belief, and more particularly on March 26, 2022, and continuing thereafter, defendant THE CITY OF NEW YORK by and its agents, servants, employees, and defendants Police Officer Brand, Shield#: 632, Police Officer Rahman, Shield#: 3511, and Police Officer Rahman, Shield#: 5322, acting in the scope of their employment and in the furtherance of the business of the defendant THE CITY OF NEW YORK, without probable cause, without reason, without justification, provocation, and with malice, improperly and illegally stopped and

frisked plaintiff, falsely detained, falsely arrested, falsely imprisoned, falsely issued a desk appearance ticket and maliciously prosecuted and retaliated against plaintiff JOSE ESCALONA-MARTINEZ.

90. At the time of said false detainment and false arrest, plaintiff JOSE ESCALONA-MARTINEZ had committed no illegal act and the defendant and its agents, servants, employees, and police officers had no probable cause or reasonable belief that the plaintiff had committed an illegal act.

91. That the said Police Officer Brand, Shield#: 632, Police Officer Rahman, Shield#: 3511, and Police Officer Rahman, Shield#: 5322 falsely detained, falsely arrested, falsely imprisoned, falsely issued a desk appearance ticket and maliciously prosecuted the plaintiff, while employed by the New York City Police Department and acting as agents, employees and/or servants of the defendant CITY OF NEW YORK, and otherwise while acting on behalf of the defendant the City of New York.

92. That the said Police Officer Brand, Shield#: 632, Police Officer Rahman, Shield#: 3511, and Police Officer Rahman, Shield#: 5322, while acting in the course of their employment for the defendant THE CITY OF NEW YORK, and following the City of New York's improper training and custom and practice that discriminates and targets Times Square street performers including

plaintiff, the defendant CITY OF NEW YORK and its officers, agents, employees and servants falsely detained, falsely arrested, falsely imprisoned, falsely issued a desk appearance ticket and maliciously prosecuted the plaintiff, while acting as agents, employees and/or servants of the defendant CITY OF NEW YORK, and otherwise while acting on behalf of the defendant the City of New York.

93. That the defendant THE CITY OF NEW YORK, through its police officers, including Police Officer Brand, Shield#: 632, Police Officer Rahman, Shield#: 3511, and Police Officer Rahman, Shield#: 5322 acted intentionally, willfully, knowingly, and maliciously in bringing about the false detainment, false arrest, false imprisonment, and malicious prosecution of plaintiff.

94. That the defendant, THE CITY OF NEW YORK, was negligent in its hiring and training practices of its police officers including Police Officer Brand, Shield#: 632, Police Officer Rahman, Shield#: 3511, and Police Officer Rahman, Shield#: 5322; in that it retained officers not fit by temperament or personality to be officers; in failing to fire officers not fit for their position; in failing to instruct officers as to the civil rights of defendants; in failing to instruct and train officers on the rules and regulations of designated zones and designated activity in Times Square Area; in the malicious prosecution of

plaintiff without probable cause; in detaining plaintiff without probable cause; in harassing plaintiff; in arresting plaintiff without probable cause; in imprisoning plaintiff without probable cause; in failing to have an arrest warrant; in failing to give Miranda Warnings; in following a custom and practice that discriminates and targets Times Square street performers such as plaintiff; in taking plaintiff's freedom away; in failing to protect plaintiff; in violating plaintiff's rights under the New York State Constitution, violating plaintiff's right under the U.S. Constitution and federal statutes including 42 USC 1985, 1983 and 1981 in that plaintiff was deprived of his rights, privileges and immunities afforded under the Federal Constitution and Federal Law; defendant THE CITY OF NEW YORK and defendants Police Officer Brand, Shield#: 632, Police Officer Rahman, Shield#: 3511, and Police Officer Rahman, Shield#: 5322 were negligent in failing to use such care in the performance of their duties as a police officer as a reasonably prudent police officer would have performed under similar circumstances including but not limited to failing to use ordinary care; failing to protect; failure to guard, failure to police; failure to serve the public; failure to supervise, failure to train, failure to manage, failure to instruct; in permitting the false detention, false arrest, false imprisonment and malicious prosecution of the plaintiff; in permitting a custom

and practice that discriminates and targets Times Square street performers such as plaintiff; in promulgating a custom, practice and policy that discriminates and targets Times Square street performers; in harassing the plaintiff; in having a custom and practice of discriminating and retaliating against plaintiff for making prior formal complaints against police for prior similar conduct failing to train its officers; and in failing to avoid the occurrence although there was an opportunity to do so.

95. That the defendants Police Officer Brand, Shield#: 632, Police Officer Rahman, Shield#: 3511, and Police Officer Rahman, Shield#: 5322, failed to protect, and falsely detained and falsely arrested plaintiff without probable cause or reason, while acting as an officer, agent, employee and/or servant of the defendant THE CITY OF NEW YORK, and otherwise while acting on behalf of the defendant THE CITY OF NEW YORK.

96. That as a result of the above actions of the defendants including its police officers, plaintiff suffered severe mental anguish, psychological trauma, physical harm, loss of freedom, false arrest, false charges, false imprisonment, stop and frisk, humiliation, ridicule, harm to reputation, psychological trauma, and disability from activities, malicious prosecution, retaliation, intentional infliction of emotional distress, harassment, embarrassment, emotional distress, anxiety,

depression, fear of police, and loss of quality of life; all to his damage in an amount which exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

WHEREFORE, plaintiff demands judgment against the defendants on each cause of action in an amount which exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction, all together with punitive damages and the costs and disbursements of this action.

Dated: May 24, 2023

DAVID HOROWITZ, P.C.

By: Joanna Plonska

Joanna Plonska  
171 Madison Avenue  
New York, New York 10016  
(212) 684-3630



**ATTORNEY'S VERIFICATION**

**JOANNA PLONSKA**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury: I am an attorney at DAVID HOROWITZ, P.C., attorneys of record for Plaintiff(s) **JOSE ESCALONA-MARTINEZ**. I have read the annexed **SUMMONS AND COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters, I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because my Plaintiff(s) is/are not presently in the county wherein I maintain my offices in Richmond County.

Dated: New York, New York  
May 24, 2023

*Joanna Plonska*  
JOANNA PLONSKA

**Index No.**

**SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK**

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**JOSE ESCALONA-MARTINEZ,**

**Plaintiff,**

**-against-**

**THE CITY OF NEW YORK, POLICE OFFICER  
"JOHN" RAHMAN (FIRST NAME UNKNOWN),  
SHIELD#: 5322, and POLICE OFFICER  
"JOHN" BRAND (FIRST NAME UNKNOWN),  
SHIELD#: 632, and POLICE OFFICER  
"JOHN" RAHMAN (FIRST NAME UNKNOWN),  
SHIELD#: 3511,**

**Defendants.**

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**SUMMONS AND VERIFIED COMPLAINT**

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**DAVID HOROWITZ, P.C.**

*Attorneys for Plaintiff*

**171 Madison Avenue, Suite 1300**

**New York, New York 10016**

**(212) 684-3630**

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*Pursuant to 22 NYCRR 130 1.1., the undersigned, an attorney admitted to practice in the courts of the State of New York, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.*

*Dated: May 24, 2023*

*Joanna Plonska*  
**JOANNA PLONSKA, ESQ.**

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